JUSTICE KAMBARAMI
and
TALENT KAMBARAMI
and
TSITSI SHAMN (nee Kambarami)
and
KETI KAMBARAMI N.O
(In her representative capacity as the Executor of the Estate Late Austin Kambarami DR 2669/03)
versus
SPIWE TAKAVENGWA N.O (In her representative capacity as the Executor
Of the Estate Late Lawrence Kambarami DR 2082/23)
and
MASTER OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
**MAXWELL J:**
HARARE, 9 October 2025 & 12 February 2026

**Civil Trial-Absolution from the instance**

*A. Moyo*, for the Plaintiffs
*K.F Chipudya*, for the 1st Defendant
No appearance for the 2nd Defendant

**MAXWELL J:** Plaintiffs issued summons seeking the following relief:

a) An order declaring that the whole property known as Stand 113, Westwood Drive, Westwood Kambuzuma, Harare, belongs to the estate the late Austin Kambarami DR 2669/03.
b) Consequently the whole property known as Stand 113, Westwood Drive, Westwood, Kambuzuma, Harare be and is hereby removed from the list of assets for distribution in respect of the Estate Late Lawrence Kambarami DR No 2082/23.
c) An order that 1st Defendant pays costs on a higher scale of attorney and client.

Alternatively, Plaintiff's claim against the Defendants is for declaratory and consequential relief as follows:

a) An order declaring that 75% of the value of the whole property known as stand 113 Westwood Drive, Westwood, Kambuzuma, Harare, be and is hereby awarded to the first and third Plaintiffs;

b) An order declaring that Estate Late Lawrence Kambarami DR No 2083/23 is entitled to 25 % of the value of the whole property known as stand 113 Westwood Drive, Westwood, Kambuzuma, Harare.
c) An order that the first Defendant pays costs on a higher scale of attorney and client."

In the declaration it is stated that the first and third Plaintiffs are all children of the late Patricia and Austin Kambarami who passed away in 1995 and 2003 respectively. Patricia purchased the property in question during the subsistence of her union with Austin. When she passed on, her estate was registered under DR 1980/95. The property was awarded to the late Lawrence Kambarami by virtue of a certificate of heirship dated 18 July 1995. On 2 August 1995, the late Lawrence Kambarami executed a consent to redistribution in which the property was redistributed to Austin Kambarami. Sometime in September 2002, the late Austin Kambarami executed a Will awarding the property to his children, first and third Plaintiffs and the late Lawrence Kambarami.

The property is currently listed as one of the assets for distribution under first Defendant, in the Estate Late Lawrence Kambarami. The first Defendant was customarily married to the late Lawrence Kambarami. The declaration alleges that the first Defendant and the late Lawrence Kambarami were allowed to occupy a cottage within the property by the family after they were hit by hardships. The first and third Plaintiffs claim an existing and contingent right not to be disinherited of their parent's property by the first Defendant.

First defendant entered an appearance to defend. In her plea she claimed that the redistribution document was signed under duress and the late Lawrence had immediately resiled from it and hence the property was transferred into his name by the Executor. She pointed out that the late Austin could not distribute in a Will property that does not belong to him. She pointed out further that she and her husband were collecting rentals from the tenants at the property since 2012 and they occupied a cottage because they wanted income from the main house. She insisted that the property belongs to the Estate Late Lawrence Kambarami.

After an exchange of pleadings, a Pre-Trial Conference was held. The issue referred to trial was

> "1. Whether or not the property known as stand 113 Westwood Drive, Westwood, Kambuzuma, Harare belongs to Estate Late Austin Kambarami DR No. 2269/03?
> Or alternatively
> Whether or not the property known as Stand 113 Westwood Drive, Westwood, Kambuzuma, Harare should be distributed in equal shares amongst the children of the late Patricia Kambarami, with a life usufruct being given to the first Defendant in the interest of justice."

The matter was set down for trial on 9 October 2025. On the 8th of October 2025, first Defendant's legal practitioners gave notice of intention to raise a point of law at the hearing of the matter through a letter. They stated that they had noted that the relief being sought by Plaintiffs is incompetent as the deed of transfer passed in favour of Lawrence Kambarami is extant and the Master of the High Court's decision to award the property to the late Lawrence Kambarami remains uncontested. On the hearing of the matter, Mr Chipudya persisted with the intention to challenge the alleged defect in the summons. He submitted that the issue is a point of law which can be raised at any time in the proceedings. Mr Moyo objected and pointed out that the challenge was unprocedural as there are rules governing how to challenge defective summons. He pointed out that the matter had gone through all pre-trial processes including a pre-trial conference before a Judge and the first Defendant had not raised any issue. He urged the Court not to deal with the issue that had been improperly raised through a letter.

Pleadings are required to be raised in a formal manner for the Court to rely on them. Although it is trite that a point of law can be raised at any stage during the proceedings, it must be done in a proper way. The Supreme Court has already stated that a letter does not constitute proper pleading. See *Allied Bank Ltd* v *Dengu* & *Anor* SC 52/16. I noted that the issue first Defendant sought to raise was not new. It was mentioned in the plea and therefore ought to have been dealt with in a procedurally correct manner. I dismissed the preliminary issue on the basis that it was not raised in a proper manner.

The trial commenced with the third Plaintiff testifying. She is the last born to Austin and Patricia Kambarami. Her mother was working at City Council when she bought the property in question. Her father also bought a house next to Patricia's. Her father had two wives. Their family stayed in the house acquired by Austin whilst their father's other wife, Scholastica, was in Patricia's house. When her mother died, her house was put in the name of the eldest son, Lawrence, as her father was having problems with Scholastica and anticipated a divorce. Lawrence was made a custodian of the house. He signed a redistribution agreement. Her father had an acrimonious divorce in 1998. He subsequently married fourth Plaintiff. The family stayed in the house bought by Austin while living off the rentals from the one bought by Patricia. A two-roomed house was added on Patricia's property. Everyone considered it a family property so the siblings assisted in the construction of the two-roomed house.

Her father died in 2003 leaving a Will in which the house bought by Patricia was bequeathed to all of Patricia's children. Lawrence never claimed the house as his own and he did not move into the main house. When Lawrence married, he went to rent in Kambuzuma. He was brought to live at the property by their uncle, their father's brother who was in charge of the family. He died in 2022 leaving five children and his spouse, first Defendant. A family meeting was held. It was decided that the house be put in a trust for the benefit of the whole family. First Defendant was to be given a life usufruct. Under cross-examination she disputed that after the death of Lawrence, the relationship of first Defendant and the rest of the family went sour. She stated that the property remained in Lawrence's name as there was no money for legal fees to effect the change of name. In addition there was a common understanding that the property belonged to all the children and no one objected to that position.

Lawrence Kambarami was the next to testify. He is a brother to the late Austin Kambarami. He was assigned to oversee the deceased's children. He testified that the late Lawrence was the only one of age when the late Austin was involved in an acrimonious divorce and a decision was made to make the late Lawrence heir on behalf of the other younger children. He testified that when the late Lawrence married the first Defendant, he was unemployed. A family meeting was held and he was allowed to stay in a cottage at the property in question. He was later allowed to move into a bigger cottage. Further that the family allowed the first Defendant to collect rentals from the property for the welfare of her children. His evidence was similar to that of the first witness in all material respects.

Katie Kambarami was the next to testify. She married the late Austin after his divorce in 1998. She was not privy to what transpired before she married Austin. That was the Plaintiff's case.

At the close of the Plaintiff's case, Mr Chipudya indicated that he had instructions to file an application for absolution from the instance. First Defendant argued that in view of the confirmed Amended Distribution Account and Certificate of Heirship, Plaintiffs have no legal basis to be awarded the proprietary rights in the immovable property. Further that the relief sought usurps the functions of the Master of the High Court as Patricia Kambarami's estate was finalised and the Master of the High Court's decision is extant and was never challenged. First Defendant also argued that Austin Kambarami never acquired the immovable property and as such he could not bequeath the immovable property to anyone as he did in his will.

In response, Plaintiffs stated that the redistribution agreement, the Will and the rental arrangements all point to a shared understanding that the Title Deed does not reflect exclusive ownership. They argued that there are two competing rights before the Court which are *prima facie* recognisable that is, the Defendant relying on the Title Deed whilst the Plaintiffs rely on the consent to redistribute and the Will. They pointed out that they are not challenging the Master's administrative functions but seek a judicial pronouncement on the legal effect of the consent to redistribute, the Will and the subsequent registration.

A decree of absolution from the instance is an appropriate order to make after all the evidence led by the Plaintiff has not laid out a *prima facie* case upon which a Court may find for the Plaintiff. In *Nobert Katerere* v *Standard Chartered Bank Zimbabwe Limited* HB 51/08 it was stated:

> "The Court should be extremely wary of granting absolution at the close of the Plaintiff's case. The court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the Plaintiff's evidence. The test to be applied is not whether the evidence led by the Plaintiff establishes what will finally have to be established. Absolution from the instance at the close of the Plaintiff's case may be granted if the Plaintiff has failed to establish an essential element of his claim. *Claude Neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403 (A), *Marine & Trade Insurance CO Ltd* v *Van Der Schyff* 1972 (1) SA 26 (A) and *Sithole* v *PG Industries* (*Pvt) Ltd* HB 47/05."

In *United Air Charters (Pvt) Ltd* v *Jarman* 1994 (2) ZLR 341 at 343 C GUBBAY CJ (as he then was) stated that:

> "A plaintiff will successfully withstand such an application if, at the close of his case, there Is evidence upon which a Court, directing its mind reasonably to such evidence, could or might (not should or ought to) find for him. See *Supreme Svc Station (1969) (Pvt) Ltd v Fox* & *Goodridge (Pvt) Ltd 1971 (1) RLR 1 (A) at 5D-E Laurenco* v *Ruja Dry Cleaner and Steam Laundry (Pvt) Ltd 1984 (2)* ZLR 151 (S) at 158 B-E."

In this case there are issues raised by the Plaintiff to which no satisfactory answer appear on the papers. The late Lawrence Kambarami was appointed heir by virtue of a certificate of heirship dated 18 July 1995. On 2 August 1995 he signed a redistribution agreement in which he stated that:

> "I do hereby give the executor my consent to distribute the whole estate to my father Austin Kambarami, National registration Number 63-045100G42."

The agreement was signed by two witnesses. Consequently, in the first and final Liquidation and Distribution Account in the Estate of the late Patricia Kambarami DR 1980/95 signed by the Executor Dative on 16 October 1995, the property was awarded Austin Kambarami with the caption "by virtue of the consent to Redistribution by heir dated 2/8/95."

On the same day, that is 16 October 1995, the same Executor Dative signed another Final Liquidation and Distribution Account in same estate awarding the property to Lawrence Kambarami "by virtue of certificate of heir dated 18 July 1995."

The certificate of heir was overtaken by the consent to Redistribution signed by the late Lawrence Kambarami, as witnessed by two witnesses. There is no revocation of that document on record. There is however a letter from Polka Executor Services (Pvt) Ltd in which it is stated that Austin Kambarami indicated that he did not want the property into his name. The circumstances in which that was related to the Executor Dative is not stated. Moreover, the Executor Dative is not the author of the letter on record. There is no affidavit from the author of the letter explaining his /her interaction with Austin Kambarami. There is no indication of when that letter was written as it is not dated. The fact that there is a title deed in the late Lawrence's name is immaterial considering the fact that it is the Executor Dative who authourised the transfer into the late Lawrence Kambarami's name. The authorisation was given in circumstances that raise questions. It is stated in the case of *CBZ* v *Moyo & Anor* SC 17/18:

> "In any event, the registration of transfer in the Deeds Registry does not always reflect the true state of affairs. A title deed or registered cession is therefore *prima facie* proof of ownership or cessionary rights which can be successfully challenged. When the validity of title or registered cession is challenged, it is the duty of the Court to determine its validity in order to make a ruling which is just and equitable."

The main factor relied upon by the first Defendant in resisting the relief sought is the registration of the property in the late Lawrence Kambarami's name. First Defendant stated that the late Lawrence Kambarami resiled from the redistribution agreement, yet the Executor Dative claims it is the late Austin Kambarami who refused to have the property in his name.

I am not persuaded that the Plaintiff failed to establish a *prima facie* case.

1. The application for absolution from the instance be and is hereby dismissed with costs.
2. The Registrar will set the matter down for continuation on the next available date.

**MAXWELL J:……**

*Gambe Law Group*, Plaintiff's Legal Practitioners
*Hamunakwadi and Nyandoro*: First Defendant's Legal Practitioners